

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO S.B. 1192
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-1421, Arizona Revised Statutes, is amended to
3 read:

4 32-1421. Exemptions from licensing requirements; definition

5 A. This article does not apply to any person while engaged in:

6 1. The provision of medical assistance in case of an emergency.

7 2. The administration of family remedies, including the sale of
8 vitamins, health foods or health food supplements or any other natural
9 remedies, except drugs or medicines for which an authorized prescription
10 is required by law.

11 3. The practice of religion, treatment by prayer or the laying on
12 of hands as a religious rite or ordinance.

13 4. The practice of any of the healing arts of and by Indian tribes
14 in this state.

15 5. The lawful practice of any of the healing arts to the extent
16 authorized by a license issued by this state.

17 6. Activities or functions that do not require the exercise of a
18 doctor of medicine's judgment for their performance, **THAT** are not in
19 violation of the laws of this state and **THAT** are usually or customarily
20 delegated by a doctor of medicine under the ~~doctor's~~ **DOCTOR OF MEDICINE'S**
21 direction or supervision or **THAT** are performed in accordance with the
22 approval of a committee of physicians in a licensed health care
23 institution.

24 7. The official duties of a medical officer in the armed forces of
25 the United States, the United States department of veterans affairs or the
26 United States public health service, or their successor agencies, if the
27 duties are restricted to federal lands.

28 8. Any act, task or function competently performed by a physician
29 assistant in the proper performance of the physician assistant's duties.

1 9. The emergency harvesting of donor organs by a doctor of medicine
2 or team of doctors of medicine licensed to practice medicine in another
3 state or country for use in another state or country.

4 10. PROVIDING BASIC FIRST AID IN GOOD FAITH AND WITHOUT
5 COMPENSATION TO AN INJURED PERSON IF THE PERSON ADMINISTERING THE BASIC
6 FIRST AID OBTAINS THE INJURED PERSON'S CONSENT BEFORE RENDERING
7 ASSISTANCE. IF THE INJURED PERSON IS UNDER FIFTEEN YEARS OF AGE, CONSENT
8 MUST BE OBTAINED FROM A PARENT OR LEGAL GUARDIAN. IF THE PERSON
9 ADMINISTERING THE BASIC FIRST AID DETERMINES THAT THE INJURED PERSON IS
10 UNDER FIFTEEN YEARS OF AGE, THE PERSON MUST NOTIFY LAW ENFORCEMENT OF THE
11 INJURED PERSON'S CONDITION.

12 B. This article does not apply to:

13 1. A doctor of medicine residing in another jurisdiction who is
14 authorized to practice medicine in that jurisdiction, if the doctor
15 engages in actual single or infrequent consultation with a doctor of
16 medicine WHO IS licensed in this state and if the consultation regards a
17 specific patient or patients.

18 2. A doctor of medicine who is licensed to practice in another
19 jurisdiction if the doctor engages in the practice of medicine that is
20 limited to patients with whom the doctor has an already established
21 doctor-patient relationship and who reside outside this jurisdiction when
22 both the doctor and the patient are physically in this state for not more
23 than sixty consecutive days. For the purposes of this paragraph,
24 "patient" means a person who is not a resident of this state and who is an
25 athlete or a professional entertainer.

26 [C. THIS SECTION DOES NOT LIMIT ANY LIABILITY PROTECTIONS THAT ARE
27 PROVIDED IN SECTION 32-1471.]

28 ~~[C.]~~ [D.] FOR THE PURPOSES OF THIS SECTION, "BASIC FIRST AID":

29 1. MEANS ANY OF THE FOLLOWING:

- 30 (a) CLEANING MINOR CUTS, SCRAPES OR SCRATCHES.
31 (b) TREATING A MINOR BURN.
32 (c) APPLYING BANDAGES AND DRESSINGS.
33 (d) PROVIDING FLUIDS TO RELIEVE HEAT STRESS.

34 2. INCLUDES ADMINISTERING ANTISEPTICS OR TOPICAL OINTMENTS, CREAMS
35 OR ANALGESICS AND, IF REQUESTED, PROVIDING NONPRESCRIPTION PAIN-RELIEVING
36 MEDICATION FOR THE PURPOSE OF TREATING THE AILMENTS SPECIFIED IN PARAGRAPH
37 1 OF THIS SUBSECTION.

38 Enroll and engross to conform

39 Amend title to conform

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